BY ORDER OF THE
SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE
INSTRUCTION 61-104

25 AUGUST 2025

Scientific, Research And Development

MANAGEMENT OF SCIENTIFIC AND TECHNICAL INFORMATION (STINFO)

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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(Mr. Devin Cate)

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This publication implements Department of the Air Force Policy Directive (DAFPD) 61-1, Management of the Science and Technology Enterprise. This publication supports guidance provided in Department of Defense Instruction (DoDI) 3200.12, The DoD Scientific and Technical Information Program (STIP) and DoDI 5230.24, Distribution Statements on Technical Documents. It provides guidance and procedures for creating, protecting, disseminating, archiving, or destroying Air Force Scientific and Technical Information and Technical Documents (TD), hereafter collectively referred to as Technical Information or STINFO, throughout the acquisition life cycle. This publication applies to all civilian employees and uniformed members of the Department of the Air Force (DAF), Air Force Reserve, Air National Guard, and other organizations as required by binding agreement or obligation with the DAF to include those outlined in **attachment 1**, who develop, manage, review, disseminate, or use Air Force STINFO. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, Records Management and Information Governance Program, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the Office of Primary Responsibility, SAF/AQ SAF-AQT Workflow **SAF.AQ.SAF-AQT.Workflow@us.af.mil** using the DAF Form 847, Recommendation for Change of Publication; route DAF Forms 847 from the field through the appropriate functional chain of command. This DAFI may be supplemented at any level, but route all supplements that directly implement this publication to SAF/AQT for coordination prior to certification and approval. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See DAFI 90-160,

Publications and Forms Management for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestor's commander for non- tiered compliance items.

SUMMARY OF CHANGES

This publication implements updated Department of Defense (DoD) policy to provide greater clarity concerning the processes and responsibilities of managing Air Force scientific and technical information. It also renumbers DAFI 61-201 to DAFI 61-104 to nest properly under DAFPD 61-1 following the recension of DAFPD 61-2.

1. Overview.

1.1. Purpose. The purpose of this instruction is to safeguard STINFO within the bounds of law, regulation, other directives, and executive requirements, while maximizing access to, exchange of, and collaboration on STINFO by establishing guidance and procedures to manage STINFO throughout the life cycle of the information. All DAF personnel and organizations that create, use, or handle STINFO must understand how to manage such information. Use this DAFI with DoDI 3200.12, DoD Scientific and Technical Information Program (STIP); Department of Defense Manual (DoDM) 3200.14 Volume 1, Principles and Operational Parameters of the DoD Scientific and Technical Information Program (STIP): General Processes; DoDI 3200.20, Scientific and Engineering Integrity; DoDI 5230.24; DoDD 5230.25, Withholding of Unclassified Technical Data from Public; DoDM5200.01_AFMAN16-1404, Air Force Information Security Program; AFI 61-101, Management of Science and Technology; and DAFI 63-101/20-101, Integrated Life Cycle Management.

1.1.1. STINFO is a key outcome and record of Air Force Research, Development, Test, and Evaluation (RDT&E), Science & Technology and technical information sponsored, in whole or in part, by the DAF. Program progress and results are sent to the Defense Technical Information Center (DTIC) or other DoD-approved repositories for cataloging, storage, and dissemination. The DAF communicates, collaborates, and exchanges STINFO with DoD scientists, engineers, acquisition professionals, other federal agencies; academia, the private sector and international partners while adhering to the integrity of scientific and engineering activities in accordance with DoDI 3200.20.

1.1.2. DAF personnel will appropriately mark all technical documents, resulting from RDT&E and operations and maintenance efforts with distribution statements, regardless of the medium used to convey the information IAW DoDI 5230.24. (T-1).

1.1.3. The DAF withholds from public disclosure all unclassified export-controlled technical data with a military or space application that may not be exported lawfully without approval, authorization, and or license IAW 10 USC 130 and DoDD 5230.25.

1.1.4. Technical information can be classified, Controlled Unclassified Information (CUI), or publicly releasable. Technical information is controlled IAW DoDI 5230.24, DoDD 5230.25, DoDI 5210.83, DoD Unclassified Controlled Nuclear Information (UCNI); DoDM 5200.01 v1_AFMAN 16-1404 v1 Information Security Program Overview, Classification, and Declassification; DoDM 5200.01 v2_AFMAN 16-1404 v2 Information Security Program Marking of Information; DoDM 5200.01 v3_AFMAN 16-1404 v3

Information Security Program Protection of Classified Information; DoDI 5200.48_ DAFI 16-1403 Controlled Unclassified Information (CUI); and DoDM 5205.07, Volume 4, Special Access Program (SAP) Security Manual: Marking. For public release, refer to DoDI 5230.09, Clearance of DoD Information for Public Release and AFMAN 35-101, Public Affairs Procedures.

1.2. Applicability.

1.2.1. This instruction applies to all technical documents referenced in DoDI 5230.24.

1.2.1.1. STINFO that results from all RDT&E activities in accordance with DoDI 3200.12.

1.2.1.2. Technical information that can be used, or adapted for use, to design, engineer, produce, manufacture, assemble, test, operate, maintain, repair, overhaul, or reproduce any United States military system equipment, software, or technology. Operations and maintenance technical data supporting sustainment, logistics, maintenance, repair, supply, and testing are maintained, disseminated, and controlled by the cognizant heads of Air Force sustainment and life-cycle management centers, consistent with this instruction.

1.2.2. This instruction does not apply to technical documents which are signals intelligence as defined by DoDI O-3115.07, Signals Intelligence (SIGINT) or communications security information as defined by DoDI 8523.01, Communications Security (COMSEC).

2. Roles and Responsibilities.

2.1. Deputy Assistant Secretary of the Air Force for Science, Technology and Engineering (SAF/AQT). The Assistant Secretary of the Air Force, Acquisition, Technology and Logistics (SAF/AQ), through SAF/AQT, will:

2.1.1. Develop Air Force policy for the proper generation, classification, storage, usage, dissemination, and destruction of STINFO.

2.1.2. Develop, deliver, and maintain STINFO training via the MyLearning platform.

2.1.3. Serve as the Air Force STINFO Manager and focal point for all Air Force STINFO matters to the Under Secretary of Defense for Research and Engineering (USD[R&E]), DTIC, and the other Services. Areas of Authority, delegated as necessary, include identifying classes of technical information to withhold, acting on appeals for denials of technical data release, temporarily revoking a contractor's qualification, receiving and evaluating requests for reinstatement of a contractor's qualification, and recommending a contractor's disqualification to the USD(R&E).

2.1.4. Provide guidance and oversight on creating, acquiring, documenting, marking, protecting, disseminating, withholding, controlling export, archiving, and destroying DoD technical information.

2.2. MAJ/FLDCOM Commanders and Director of Air National Guard. Commanders will: Provide support on Air Force STINFO matters to applicable entities across the DoD.

2.2.1. Ensure STINFO is correctly marked, distributed, controlled, destroyed, and archived.

2.2.2. Ensure work-in-progress data and results of Air Force funded or conducted basic research, applied research, and advanced technology development are sent to DTIC in accordance with DoDI 3200.12.

2.2.3. Designate a STINFO Manager, in writing, who will monitor the status and implementation of the STINFO program.

2.2.4. Ensure personnel are properly trained according to their STINFO roles.

2.2.5. Promote communication, collaboration, and interchange of STINFO among the DoD, federal agencies, and scientific and technical communities.

2.2.6. Provide support on STINFO matters to MAJCOM STINFO Managers Council.

2.3. STINFO Program Managers.

2.3.1. STINFO Manager(s), on behalf of the Commander serves as the single, authoritative point of contact for STINFO matters within the unit.

2.3.2. Will conduct the following actions:

2.3.2.1. Manage requisite levels of STINFO within the unit and monitor the status and implementation of the Unit STINFO Program. (T-3).

2.3.2.2. Report violations to their respective chain of command and MAJCOM STINFO Manager. (T-3).

2.3.2.3. Ensure appropriate technical document control markings are applied in accordance with DoDI 5230.24. (T-2).

2.3.2.4. Verify eligibility for access to DoD technical information for all requesters. Ensure non-DoD requests for export-controlled critical technology data with military or space application are processed and adjudicated IAW DoDD 5230.25. (T-2).

2.3.2.5. Coordinate STINFO matters with appropriate offices, including relevant technical libraries, Contracting, Foreign Disclosure Office (FDO), Judge Advocate (JA), Public Affairs (PA), Office of Special Investigations (OSI), Information Protection, Freedom of Information Act (FOIA), and Operations Security (OPSEC) Offices. (T-2).

2.3.2.6. Ensure contract(s) contain requirements for government-defined Distribution Statements, export control warnings, intellectual property clauses, and, where appropriate, American National Standard Institute (ANSI) standards for deliverable STINFO. (T-2).

2.3.2.7. Ensure that all records are maintained and managed in accordance with approved dispositions of the National Archives and Records Administration to ensure proper maintenance, use, accessibility, and preservation, as directed by DoDI 5015.02, DoD Records Management Program, AFI 33-322, Records Management and Information Governance Program, and Air Force Records Information Management System. (T-0).

2.3.2.8. Ensure the implementation of the Air Force STINFO training program and ensure the members of the workforce who routinely handle STINFO complete annual STINFO training to maintain awareness of policy and procedures that enable them to

properly identify, mark, disseminate, withhold, protect, archive, and destroy STINFO. (T-3).

2.3.2.9. Ensure controlled unclassified STINFO marked with Distribution Statements B, C, D, E, or F are marked the same manner as CUI per DoDI 5200.48 Controlled Unclassified Information (CUI). (T- 0).

2.3.2.10. Ensure unclassified STINFO documents are destroyed IAW DoDI 5200.48_DAFI16-1403, Controlled Unclassified Information (CUI) and classified STINFO documents are destroyed IAW 32 CFR Part 117 and DoDM 5200.01v3_AFMAN 16-1404v3 Information Security Program Protection of Classified Information. (T-0).

2.3.2.11. Protect digital format controlled unclassified STINFO documents using encryption when transmitting via email IAW DAF Manual (DAFMAN) 17-1301, Computer Security, and DoDI 5200.48_ DAFI 16-1403 Controlled Unclassified Information. Ensure controlled technical documents in digital form are stored/transferred using Public Key Infrastructure (PKI) requiring digital certificate verification or Hypertext Transfer Protocol Secure (HTTPS, or other methods as authorized by the DoD. (T-0).

3. Managing STINFO (Technical Information).

3.1. Overview. The DAF will promote communication, collaboration, and interchange of scientific and engineering information among federal agencies and science and engineering communities through unclassified, unrestricted, and restricted forums IAW DoD, Air Force, and local clearance procedures and within the limits of law, regulation, and national security requirements. The DAF will utilize technical symposia and professional societies as an effective mechanism for transfer and exchange of STINFO and support the professional development of Air Force scientists and engineers.

3.2. Training.

3.2.1. STINFO training is located online on the MyLearning platform in the following construct, as seen in **Table 1** (DAF STINFO MyLearning Construct) below:

Table 1. DAF STINFO MyLearning Construct.

COURSE NAME	INTENDED AUDIENCE	FREQUENCY
STINFO Level 1	All DAF personnel (Informational)	Once
STINFO Level 2	All who handle, store, manage, and disseminate STINFO	Annual

STINFO Level 3	CDOs and STINFO appointees (Program Managers, Officers, Liaisons)	Once

3.2.2. Unit STINFO Program Managers will ensure all required personnel are provided initial mission-specific STINFO training before they conduct STINFO-related duties. (T-3).

3.2.3. STINFO training compliance will be recorded and maintained by STINFO Program Managers or unit training managers. (T-3).

3.3. Documenting STINFO under the DoD STIP (DoDI 3200.12).

3.3.1. Within months of beginning or making significant changes to RDT&E efforts, DAF personnel will conduct preliminary and periodic searches of research in progress and completed research, including but not limited to checking with DTIC and peer reviewed journals/publications, to define the technology baseline, avoid duplication of effort, and justify investment. (T-1).

3.3.1.1. Coordination with technical librarians per DAFI 34-101, Chapter 18, Technical Libraries ensures detailed and effective searches are conducted.

3.3.1.2. Research efforts subject to literature searches include initiating any in-house effort, arranging for work to be performed by other Government agencies, requesting contractual services, proposal reviews for Broad Agency Announcement contract awards, significant changes to ongoing efforts, and confirming the uniqueness of subject matter and innovations of unsolicited proposals.

3.3.1.3. Literature searches are not necessary for equipment, maintenance, routine engineering, training, and conferences.

3.3.2. DoD laboratories, other federal laboratories, Federally Funded Research and Development Centers, contractors, educational institutions, and private individuals will send any work-in-progress that is sponsored, in whole or in part, by the DAF to DTIC or other DoD-approved repository, within 30 days of the start of the effort and annually thereafter. (T-1). Work-in-progress includes research efforts for basic research, applied research, or advanced technology development and the annual reporting will continue until the effort is completed, cancelled, or terminated or within the delivery terms of the contract. Research efforts may be in the form of contracts, grants, cooperative research and development agreements, studies and analysis efforts, contracted advisory and assistance services, technically distinct tasks under task-order contracts, and other transactions.

3.3.2.1. Work-in-progress data includes, but is not limited to, the entity performing the task, performance dates, funding, and technical summaries.

3.3.2.2. Data may be submitted manually or automatically uploaded to DTIC unified research and engineering database (URED), which can be accessed through the DTIC website.

3.3.3. All significant scientific or technological observations, findings, recommendations, and results sponsored, in whole or in part, by the DAF are documented and sent to DTIC, or other DoD-approved repository, within 180 days after completing the work. Classified documents that are not accepted by DTIC, or other DoD-approved repository, are exempt.

3.3.3.1. The DAF, or the external organization responsible for each research effort, submits data that documents the effort to DTIC to enable others to understand the purpose, scope, approach, results or outcomes, and conclusions or recommendations.

3.3.3.2. The documentation must contain a summary of work accomplished, to include positive and negative results. It must describe theoretical studies, experimental work, design, theory of operation, test procedures, test results, drawings, charts, graphs, illustrations, or other material needed to clarify the presentation.

3.3.3.3. The organization responsible for the research effort will submit primary sources of the information. Providing citations to where the information may be found is not sufficient. The documentation must contain sufficient detail to allow the methods to be replicated and the results compared.

3.3.3.4. Findings may be expressed in a range of products, such as technical reports, conference papers and presentations, briefing charts, theses and dissertations, scientific and technical computer software, journal articles, workshop reports, program documents, patents, and scientific research datasets, or other types of data.

3.3.3.5. If an external organization responsible for a research effort elects to submit materials protected by copyright, such as peer-reviewed journal articles, as part of its documentation of the effort, DTIC makes the information available consistent with the license afforded to the government under the terms and conditions of the applicable contract, grant, cooperative agreement, or other type of transaction.

3.3.3.6. The responsible organization must complete a Standard Form (SF) 298, “Report Documentation Page,” for each documented effort. To the greatest extent practicable, prepare scientific and technical reports, regardless of media or form, IAW ANSI/National Information Standards Organization (NISO) Z39.18-2005.

3.3.3.7. Completion of technical effort will not be signed until Final Tech Report has been received, meeting all CDRL requirements.

3.4. Managing Secondary Distribution.

3.4.1. All DAF offices generating or responsible for STINFO will assess whether the information is export controlled; apply CUI marking; determine the distribution statement; and cite up to three relevant categories for control, date of determination, and the Controlling DoD Office (CDO). (T-0).

3.4.2. Distribution statements are used on unclassified, controlled unclassified, and classified technical documents to identify their availability for secondary distribution, release, and disclosure without the need for additional approvals and authorizations from the CDO. The CDO is responsible to determine the final distribution statement, to include up to 3 categories, in addition to other control markings such as CUI markings, security classification markings, and intellectual property restrictive markings.

3.4.3. Scientific and technical information that can be used, or adapted for use, to design, produce, manufacture, assemble, test, operate, maintain, repair, overhaul, or reproduce military or space equipment, or technology concerning such equipment shall be marked and managed in accordance with DoDI 5230.24 and DoDD 5230.25 to control secondary distribution. Scientific and technical information includes but is not limited to engineering drawings, engineering data and associated lists, standards, specifications, studies and analyses, technical manuals, technical reports, technical orders, blueprints, plans, instructions and software.

3.4.4. The CDO assigns and applies distribution statements for all newly created, revised, or previously unmarked unclassified and classified Air Force technical documents, regardless of medium or format. Distribution statements include authorized categories (up to (3) three) for control in the case of distribution statements B, C, D, and E. The CDO also assigns and applies an export control warning, if the export is controlled IAW 10 USC §130, 22 CFR §121 or 15 CFR §774.

3.4.4.1. Distribution statements are displayed conspicuously on all technical data regardless of medium or format. For standard written or printed material, the markings are shown on all pages to the maximum extent practical. If the technical information is digitally prepared, or in any other medium that does not have a cover or title page, the applicable markings are affixed to all physical and digital items, such as each page, spreadsheet, product label, and container, in a conspicuous position for ready recognition.

3.4.4.2. Portions or pages of a document or a compilation of documents or technical data may have different distribution statements that would govern their distribution, if separated from the main document or data package. The most restrictive distribution on its parts applies to the document or data package as a whole. When possible and appropriate, those parts of the document or data package that require greater secondary distribution control are prepared as an attachment, addendum, annex, enclosure, or similar section to allow separate dissemination of the basic document or data package to the broader intended secondary distribution audience.

3.4.4.3. Technical documents in preliminary or working draft form will be marked with the appropriate distribution statement to control secondary distribution prior to final publication. If the appropriate distribution statement is not yet determined, apply Distribution Statement E to dissemination to DoD Components only.

3.4.4.4. Applicable distribution, classification (derivatively classified information) and dissemination control markings remain in effect until changed or removed by management direction in the CDO. Removal of, or tampering with, control markings by any unauthorized person is strictly prohibited IAW DoDI 5230.24.

3.4.4.5. Technical documents filed or archived without a distribution statement(s) and other applicable markings, IAW this instruction shall only require review and marking when/if the document is requested or when the CDO revises the document.

3.4.4.5.1. AF personnel, contractors and outside agencies may request STINFO directly from the appropriate official DoD approved repositories.

3.4.4.5.2. Request for STINFO, where the requester is not listed in the secondary

distribution identified by the distribution statement, will be directed to the CDO for approval or denial. (T-0).

3.4.4.5.3. STINFO requesters outside the DoD who request export-controlled, critical technology data must have an approved, up-to-date DD Form 2345, "Militarily Critical Technical Data Agreement," on file at Defense Logistics Agency's (DLA) Joint Certification Program (JCP) Office: **https://www.public.dacs.dla.mil/jcp/ext/**. The DD Form 2345 must explicitly state what information is required, have a valid justification, and information requested must directly align to the purpose of their commission.

3.4.4.5.4. If the CDO approves dissemination for a request from a non-U.S. entity it must be sent to the Unit Foreign Disclosure Office (IAW DoDI 5230.24) for export approval. (T-0). A foreign entity will submit non-DoD-sponsored requests through its embassy.

3.4.5. Prior to releasing unclassified technical data intended for public release, the author must coordinate the data for review by the management of the sponsoring organization, the security manager and STINFO officer of the organization. (T-0). The document is then submitted to the local PA office or authorized public release authority for review and release approval in accordance with DoDI 5230.09 and DoDI 5230.29, Security and Policy Review of DoD Information for Public Release. Ensure data submitted to PA for public release is in final format, including application of Distribution Statement A, IAW AFI 35-101. Do not mark as “draft” any technical document submitted to PA for public release.

3.4.5.1. Technical data resulting from contracted basic or applied research efforts performed at a university are normally public release. Non-DoD research data are not assigned Distribution Statement A and do not require PA office review.

3.4.5.2. Do not apply Distribution Statement A on documents that disclose design characteristics of military systems or manufacturing technologies that are unique and critical to national defense. Contact the CDO to determine the appropriate distribution statement when the technical document marking is in question or absent.

3.4.6. Unclassified technical data subject to controls on the export, access, use, reproduction, modification, performance, display, release, disclosure, or dissemination are not releasable to the public. They are marked with the appropriate DoDI 5230.24 distribution statement and handled using procedures prescribed in DoDD 5230.25 for militarily critical technology and DoDI 5200.48_DAFI 16-1403 for CUI.

3.4.7. Technical data that has not been assigned a distribution statement is handled as Distribution Statement E until reviewed by the CDO and properly marked.

3.4.8. Classified technical documents are not releasable to the public and, in addition to security classification markings, are assigned the appropriate distribution statement in accordance with DoDI 5230.24. The distribution statement assigned to a classified technical document is retained after the data is declassified, or until it is changed by the CDO. A declassified technical document without an assigned distribution statement is handled as Distribution Statement E until it is reviewed/changed by the CDO.

3.4.9. Irrespective of whether the technical information is created by Government employees or delivered to the Government with a contractor or third party-imposed intellectual property marking, the appropriate distribution statement must be applied in accordance with DoDI 5230.24, Section 5, Third Party-Imposed Distribution Statements, and mark as CUI per DoDI 5200.48_DAFI 16-1403. (T-0). The appropriate distribution statement depends in part upon the scope of the intellectual property rights license a contractor granted the Government to the technical information that governs the use, release, and disclosure of that technical information. Accordingly, with the contracting officer the intellectual property rights the contractor granted the Government to that technical information. In all cases, include the reason for "Proprietary Information" when Government license rights are less than unlimited, which limits the Distribution Statement choice to B, E, or F.

3.4.9.1. When citing Proprietary Information, the intellectual property rights of the Government as described in DoDI 5230.24, Section 5, Para 5.2.b. (i.e., Proprietary Information (Defense Federal Acquisition Regulation Supplement (DFARS) Limited Rights) or Proprietary Information (DFARS Small Business Innovation Research (SBIR) Rights)).

3.4.9.2. Ensure the accuracy of third party-imposed proprietary markings. In many cases, third parties that are unfamiliar with Government marking requirements improperly place restrictive markings on technical information. Consult with the contracting officer to determine the intellectual property rights of the Government.

3.4.10. All printed and electronic media that is determined to contain export-controlled information is assigned an appropriate distribution statement with "Export Controlled" as a category for limitation and marked with an export control warning statement as detailed in DoDI 5230.24. Technical data containing "Critical Technology" or "Direct Military Support" are also export controlled.

3.5. Disseminating and Withholding STINFO.

3.5.1. The CDO reviews and approves dissemination beyond the audience stated in the distribution statement by outside offices. The CDO may make a primary distribution regardless of the secondary distribution statement, except if proprietary information is the category for control. In such cases, the intellectual property owner must approve release. (T-0). Another exception is if any export controlled technical document is to be released to a foreign entity it must be coordinated through and approved by the Foreign Disclosure Office.

3.5.2. DoD personnel who certify access to DoD STI for non-DoD users must have the technical competence and familiarity with the user's needs and intended use for the information to determine that it is in the short-term and long-term best interest of DoD to provide access.

3.5.3. The Air Force may withhold from public disclosure any of its technical data with military or space application, if such data may not be exported lawfully without an approval, authorization, or license in accordance with export control laws and regulations identified in DoDD 5230.25. This includes Air Force O&M technical data for items on the

United States Munitions List or Commerce Control List which are export controlled and are exempt from release to the general public under the FOIA.

3.5.4. In order to receive export-controlled technical data, qualified U.S. contractors must have a valid DD Form 2345, Militarily Critical Technical Data Agreement, and the documents can only be released to the document custodian (Blocks 2 and 3 of DD Form 2345) in accordance with DoDD 5230.25. (T-0).

3.5.4.1. Any release of export-controlled technical data to qualified contractors is accompanied by a notice to the recipient as set forth in DoDD 5230.25, Enclosure 5.

3.5.4.2. If the data is marked with Distribution Statement C or D, qualified U.S. contractors who receive export-controlled technical data may disseminate such data consistent with the direction in DoDD 5230.25.

3.5.5. Technical data marked as 'government property rights', 'limited rights', 'restricted rights', 'SBIR/STTR data rights,' or 'special license rights' as defined in DFARS 252.227-7013, and 252.227-7018, as applicable, or that are authorized to be withheld from public disclosure under the FOIA exemption 4, may not be released.

3.5.6. Any requester denied technical data shall be provided promptly with a written statement of reasons for that action and advised of the right to make a written appeal of such determination to SAF/AQT per DoDD 5230.25.

3.5.6.1. SAF/AQT may delegate authority to MAJCOM STINFO program manager to act on appeals relating to the release of technical data. The MAJCOM program manager will inform SAF/AQT in writing when it utilizes this authority.

3.5.6.2. If the MAJCOM program manager is unable to resolve an appeal, SAF/AQT will confer and make the final determination.

3.5.7. Redirect requests for STINFO received from a certified U.S. contractor implementing a foreign military sales (FMS) case with their FDO for approval. Prior to initiation, all foreign cooperative science and technology programs will seek approval from the appropriate foreign disclosure and technology transfer agency to ensure compliance with 22 USC 2778 of the Arms Export Control Act.

3.5.8. Requests for STINFO from foreign entities who are not bidding or performing on a Government contract or a DoD-approved security assistance program must be made through their embassy. The embassy may submit the request to the Deputy Undersecretary of the Air Force for International Affairs (SAF/IA), Country Director. (See AFPD 16-2, Disclosure of Military Information to Foreign Governments and International Organizations.)

3.5.9. For dissemination of export-controlled technical data to foreign contractors bidding or performing on a government-approved contract, ensure the request for proposal or contract contains non-disclosure or contractual language obligating the contractor to properly protect and manage export-controlled technical data.

3.5.9.1. Apply the disclosure statement provided in DAFMAN 16-201, Air Force Foreign Disclosure and Technology Transfer Program, prior to disseminating U.S. DoD technical data to any foreign entity.

3.5.9.2. Ensure contractors qualify for International Traffic in Arms Regulations (ITAR) licensing exemptions in part 125.4.

3.6. Disqualification of U.S. contractors. Previously qualified U.S contractors or subcontractors may be disqualified from eligibility to receive critical technology with military or space application.

3.6.1. Upon receipt of credible and sufficient information from DoD personnel that a qualified U.S. contractor has violated U.S. export control law, violated its certification, made a certification in bad faith, or made an omission or misstatement of material fact SAF/AQT will temporarily revoke the contractor's qualification in accordance with DoDD 5230.25. SAF/AQT will notify the contractor, SAF/AQ, USD(R&E), DLA Joint Certification Program Office, Office of Special Investigations, and SAF/SQT (for all Space S&T matters) when this occurs.

3.6.1.1. SAF/AQT will give the contractor an opportunity to respond, in writing, to the information upon which the temporary revocation is based before being disqualified.

3.6.1.2. SAF/AQT may reinstate any U.S. contractor whose qualification has been temporarily revoked upon presentation of sufficient information showing that the basis for such revocation was in error or has been remedied.

3.6.1.3. SAF/AQT may recommend disqualification of the contractor when the basis for a contractor's temporary revocation cannot be removed within 20 working days. SAF/AQT will coordinate with SAF/GC and AF/JA and make a disqualification recommendation to SAF/AQ and USD(R&E), in turn.

WILLIAM D. BAILEY
Director & Program Executive Officer, Air Force
Rapid Capabilities Office
Performing the duties of the Assistant Secretary of
the Air Force

(Acquisition, Technology & Logistics)

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

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Abbreviations and Acronyms

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

ANSI—American National Standards Institute

CDO—Controlling DoD Office

COMSEC—Communications Security

CUI—Controlled Unclassified Information DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

DAFPD—Department of the Air Force Policy Directive

DFARS—Defense Federal Acquisition Regulation Supplement

DLA—Defense Logistics Agency

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

DoDM—Department of Defense Manual

DTIC—Defense Technical Information Center

FDO—Foreign Disclosure Office

FLDCOM—Field Command

FMS—Foreign Military Sales

FOIA—Freedom of Information Act

FOUO—For Official Use Only

HTTPS—Hypertext Transfer Protocol Secure

IAW—In Accordance With

ITAR—International Traffic in Arms Regulations

JA—Judge Advocate

JCP—Joint Certification Program

MAJCOM—Major Command

NISO—National Information Standards Organization

O&M—Operations and Maintenance

OPSEC—Operations Security

OSI—Office of Special Investigation

PA—Public Affairs

RDT&E—Research, Development, Test, and Evaluation

SAP—Special Access Program

SBIR—Small Business Innovation Research

SF—Standard Form

SIGINT—Signals Intelligence

STINFO—Scientific & Technical Information

STIP—Scientific and Technical Information Program

STTR—Small Business Technology Transfer

TD—Technical Document

TO—Technical Order

UCNI—Unclassified Controlled Nuclear Information

URED—Unified Research and Engineering Database

Office Symbols

SAF/AQ—Secretary of the Air Force for Acquisition

SAF/AQT—Secretary of the Air Force for Technology, Engineering, and Product Support

SAF/IA—Secretary of the Air Force for International Affairs

USD[R&E]—Under Secretary of Defense for Research and Engineering

Terms

Advanced Technology Development—Research efforts that have moved beyond applied research and into the development and integration of hardware for field experiments and tests. Also referred to as "6.3" or RDT&E Budget Activity Code 3.

Applied Research—Systemic study to gain knowledge or understanding necessary to determine the means by which a recognized and specific need may be met. Also referred to as "6.2" or RDT&E Budget Activity Code 2.

Arms Export Control Act—The law set out in 22 USC 2751-2794. This statute requires obtaining a license from the Department of State for exporting defense articles and services, including technical data related to defense articles. It is implemented by the International Traffic in Arms Regulations (ITAR) set out in 22 CFR 121-130 FOIA.

Basic Research—Systemic study directed toward greater knowledge or understanding of the fundamental aspects of phenomena and of observable facts without specific application towards processes or products. It includes all scientific study and experimentation directed toward increasing fundamental knowledge and understanding in the fields of physical, engineering, environmental, and life sciences related to long-term national security needs. It is farsighted high reward research that provides the basis for technological progress. Also referred to as "6.1" or RDT&E Budget Activity Code 1.

Controlling DoD Office (CDO)—The DoD component that sponsored the work that generated the technical document for the DoD and has the inherently governmental responsibility for determining the distribution of a document containing such technical information. For joint sponsorship, the controlling office is determined by advance agreement and may be a party, group, or committee representing the interested activities or DoD Components. Only the controlling office or higher authority may authorize distribution beyond the distribution statement. DoD personnel who certify access to DoD STI for non-DoD users must have the technical competence and familiarity with the user's needs and intended use for the information to determine that it is in the short-term and long-term best interest of DoD to provide access.

Controlled Unclassified Information (CUI)—Unclassified information that requires safeguarding or dissemination controls, pursuant to and consistent with applicable laws, regulations, and Government-wide policies.

Department of the Air Force (DAF)—Includes the U.S. Air Force and U.S. Space Force.

Distribution Statement—A statement used in marking technical information to denote the extent of its availability for secondary distribution, release, and disclosure without additional approvals and authorizations.

Defense Technical Information Center (DTIC)—Collects, indexes, catalogs, and provides storage for scientific and technical information obtained from DoD components and their contractors, non-DoD domestic sources and foreign sources. Maintains and operates centralized databases of technical and management-related information describing the content and scope of research and engineering programs. Operates under the authority, direction, and control of the Assistant Secretary of Defense for Research and Engineering.

Export-Controlled Technical Data—Data that cannot be lawfully exported without the approval, authorization, or license under U.S. export control laws. The controlling regulations are the Export

Administration Regulations, and the International Traffic in Arms Regulations (ITAR), which includes the U.S. Munitions List (USML).

Freedom of Information Act (FOIA)—FOIA is a Federal law that establishes the public's right to request existing records from Federal Government Agencies. The FOIA program is governed byDODM5400.07_AFMAN33-302, Freedom of Information Act Program.

Intellectual Property—Information, products, or services that are protected by law as intangible property, including data (e.g., technical data and computer software), technical know-how, inventions, creative works of expression, trade names.

Primary Distribution—Distribution of scientific and technical information by the controlling DoD office. Includes initial distribution as well as any subsequent, case-by-case distribution during the life of the information made by the controlling DoD office.

Qualified U.S. Contractor—Defined in paragraph 3.2. in DoDD 5230.25.

Scientific and Technical Information—Findings and technological innovations resulting from basic research, applied research, and advanced technology development efforts and science and technology work of scientists, researchers, and engineers, whether contractor, grantee, or federal staff. Scientific and technical information also conveys the results of demonstration and commercial application activities as well as experiments, observations, simulations, wargames, studies, and analyses. Scientific and technical information is found in many forms and formats including textual, graphical, numeric, multimedia, and digital data, technical reports, scientific and technical conference papers and presentations, theses and dissertations, scientific and technical computer software, journal articles, workshop reports, program documents, system concepts, patents, and other forms or formats of technical data. Scientific and technical information may be classified, controlled unclassified information (including export controlled or personally identifiable information), or unclassified publicly releasable. DoD-funded scientific and technical information originates primarily from research and other activities performed by direct DoD-executed prime procurements, DoD-operated research activities, and financial assistance recipients, as well as DoD employees.

STINFO - STI and TI (considered collectively)—A term used to express STI as defined in DoDI 3200.12 along with other DoD technical information when considered together in this instruction and in reference to the Air Force STINFO Program.

Secondary Distribution—Release of technical data provided after primary distribution by the originator or controlling office. Secondary distribution includes loaning, allowing the reading, or releasing data outright, in whole, or in part.

Technical Data—Recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

Technical Document (TD)—Any recorded information that conveys scientific and technical information or technical data. This includes such informal documents as working papers, memoranda, and preliminary reports when such documents have utility beyond the immediate mission requirement or will become part of the historical record of technical achievements.

Technical Information—This term is broader in scope than the Scientific and Technical Information definition and is applicable when determining distribution statements for technical documents. It includes technical data or computer software of any kind that can be used, or adapted for use, in the design, production, manufacture, assembly, repair, overhaul, processing, engineering, development, operation, maintenance, adapting, testing, or reconstruction of goods or material or any technology that advances the state of the art or establishes a new art in an area of significant military applicability in the United States. The data may be in tangible form, such as a blueprint, photograph, plan, instruction, or an operating manual, or may be intangible, such as a technical service or oral, auditory, or visual description. Examples of technical data include research and engineering data, journal articles, workshop reports, program documents, wargame system concepts, patents, data sets, engineering drawings and associated lists, catalog-item identifications, specifications, standards, process sheets, technical manuals, technical reports, technical orders, and studies and analyses.

Technical Orders (TO)—Technical Manuals developed to support maintenance and operation of centrally-procured and managed Air Force weapon systems and equipment. The Air Force Technical Orders System manages and distributes Technical Orders. The term Technical Order is equivalent to the DoD term Technical Manual.

Technical Report—Any preliminary, interim, or technical document (regardless of media) prepared to record, document, share results, or make recommendations on or relating to DoD-sponsored or cosponsored scientific, technical studies, or analytical work. Technical Reports normally detail empirical findings and include ancillary information necessary for interpreting, applying, and replicating the results or techniques of an investigation.

URED—A consolidated data base of Research Summaries, Research and Engineering Database, and In-House Science and Technology Activities Report. A major purpose of the databases is to collect information about research and development that is funded by the Department of Defense.

U.S. Contractor—Those qualified U.S. contractors currently holding grants or contracts with the Department of Defense, or those contractors declared eligible for DoD information services by a sponsoring DoD activity on the basis of participation in a DoD Potential Contractor Program.

Violation—A violation is any instance when controlled unclassified data is released without CDO authorization or shared with persons unauthorized to receive the data based on the distribution statement.